



Executive report on the main grounds and procedural steps for the conclusion of insolvency proceedings due to satisfaction of all claims

To: LUCHY PLAYA BLANCA S.L.U.
From: CUATRECASAS GONÇALVES PEREIRA S.L.P.
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1. INTRODUCTION

Article 176.1.4^o of the Spanish Insolvency Act (“SIA”) states that:

“1. Conclusion and archive of insolvency proceedings shall operate in the following cases:

[...] 4^o. At any state of the proceedings, when it is verified that payment or legal deposit of all recognized claims has been made, or that the creditors have been fully satisfied by any other means, or that there is no longer a situation of insolvency”.

Thus, an insolvency proceeding shall conclude if it is proved that (i) all recognized claims have been fully paid or satisfied (e.g. by means of legal deposit or “consignation” of enough funds to be paid) or (ii) the insolvency situation has disappeared (e.g. because the value of debtor’s assets has risen enough to grant liquidity and allow the regular compliance with enforceable and payable obligations, donation of new funds for the debtor, etc.).

In this executive report, as requested by LUCHY PLAYA BLANCA S.L.U. (“**LUCHY PLAYA**” or the “**Client**”), we will go through the cause for conclusion of its insolvency proceeding (no. 36/2012, followed before commercial court no. 1 of Las Palmas de Gran Canaria) based on the satisfaction by LUCHY PLAYA (or a third party) of all recognized claims through payment (if the bank account number or other payment details of creditors are known by the debtor, so that payment of claims can be done directly and the debtor can obtain proof of such payment) or consignation of funds in the court’s account (if the debtor does not know creditor’s payment details or there are contingent claims to be eventually paid which are not confirmed yet).

Payment or consignation could be made by either LUCHY PLAYA or any third party (normally, an interested party, e.g. personal guarantor of the insolvent debtor or a company



from the same group of the debtor, as the case seems to be according to the information provided by the Client), at any stage of the insolvency proceeding.

It is important that all claims are fully satisfied, including not only insolvency claims, but also administrative expenses against the estate (*‘créditos contra la masa’*) and contingent claims, in order to avoid or at least minimize the risk of opposition to the petition for conclusion of the insolvency proceeding.

In the following sections we will address the main grounds for the conclusion of the insolvency proceeding due to payment or consignment of all claims, as well as the procedural steps that shall be followed, which could be summarized as follows:

- (i) As all claims must be satisfied, in order to conclude the insolvency proceeding, it is necessary to **first identify all existing creditors** (i.e. those recognized in the definite list of creditors, including holders of contingent claims and administrative expenses against the estate and, insofar as possible, those foreseeable claims that may arise in the short term while the conclusion of the insolvency is being processed).
- (ii) Second, all claims must be satisfied, through **direct payment to creditors or consignment of enough funds**, to satisfy all unpaid claims, in the bank account corresponding to the commercial court no. 1 of Las Palmas (*ex* article 176.1.4º of the SIA). Payment or consignment of funds could be completed by either LUCHY PLAYA or, as the case seems to be, third party (i.e. a different company from the same group).
- (iii) Third, LUCHY PLAYA shall **submit a writ before the commercial court within the insolvency proceeding**, informing about the full satisfaction of all claims, identifying all creditors and claims that have been satisfied and **requesting the conclusion** of the insolvency proceeding according to the procedure set out in article 176 of the SIA. It is important that all creditors are effectively notified of the payment/consignment of funds (either through their legal representation in the insolvency proceeding –that will receive a copy of the referred writ-, or through any other reliable communication –e.g. burofax with proof of delivery and receipt-).
- (iv) After that, LUCHY PLAYA should **contact the insolvency administration and**, if necessary, **the commercial court** in the insolvency proceeding to offer its availability to provide all necessary information (and evidence) to help them verify the satisfaction of all claims and the existence of the cause for conclusion of the insolvency proceeding *ex* article 176.1.4º of the SIA.



- (v) LUCHY PLAYA shall then **await the report** that the insolvency administration will have to draft and submit within the insolvency proceeding, before the court can decide on the conclusion of the insolvency proceeding (*ex article 176.2 of the SIA*).
- (vi) After submission of the report and the judicial decision on the conclusion, **a 15-working-days period for opposing to the conclusion of the insolvency proceeding** will be granted to all procedural parties. If no one opposes, the conclusion will become firm and definite.
- (vii) If any interested party opposes to the conclusion, the court will resolve it through a **separate insolvency procedural plea** (where LUCHY PLAYA and all interested parties will have the opportunity to discuss about the adequacy of the conclusion of the proceeding). The judicial ruling resolving this procedural plea (confirming the conclusion of the insolvency proceeding or not) could also be appealed before the competent Provincial Court.

2. MAIN GROUNDS FOR INSOLVENCY CONCLUSION DUE TO SATISFACTION OF CLAIMS THROUGH PAYMENT OR CONSIGNATION

2.1. What type of claims must be satisfied?

All claims shall be satisfied to achieve the conclusion of the insolvency proceeding.

This means that the debtor (or any other interested party, as anticipated) shall pay, consign or satisfy through any other means **not only the insolvency liabilities that have been fully recognized** in the insolvency report drafted by the insolvency administration, **but also administrative expenses against the estate** (*‘créditos contra la masa’*)¹ and **contingent claims**.

Regarding the satisfaction of administrative expenses against the estate, as well as the insolvency liabilities, the Provincial Courts of Madrid (e.g. ruling no. 59/2009, of March 13,

¹ These are “super privileged claims” that shall be paid as they become due and payable. They normally correspond to claims that arise due to the ongoing of the insolvency proceeding, the debtor’s activity, etc.



from 28th section [JUR 2009\235389]²) and Barcelona (e.g. ruling no. 444/2010, of December 13, from 15th section [AC 2011\731]³) have expressly highlighted its importance.

In particular, the existence of contingent claims that remain unsatisfied (i.e. not paid or, at least, not provisioned for their eventual satisfaction when the contingency may disappear by virtue of a firm definite judicial resolution) could be opposed against the petition for conclusion of the insolvency proceeding (e.g. ruling from the Provincial Court of Málaga 6th section, January 20, 2011 [EDJ 213301]⁴).

Finally, should just one creditor remain unpaid, there are opinions against the possibility to conclude the insolvency proceeding (e.g. rulings from Provincial Court of Alicante, November 22, 2011 [EDJ 306496] and Provincial Court of Córdoba, May 13, 2010) and opinions favorable to it (e.g. Santiago Senent)⁵.

In light of the above, in the present case, LUCHY PLAYA (or a third party) should pay or consign enough funds for the satisfaction of all claims that have been recognized in the

² “[...] resulta preciso que se produzca o compruebe el pago o la consignación de la totalidad de los créditos reconocidos o la íntegra satisfacción de los acreedores por cualquier otro medio, lo que comprende no solo la cobertura de los créditos concursales sino también de los de la masa”.

³ El artículo 176.1.3º regula como presupuesto de la conclusión del concurso “el pago o la consignación de la totalidad de los créditos reconocidos o la íntegra satisfacción de los acreedores por cualquier otro medio”. Por tanto, incluye el pago no sólo de los créditos concursales, sino también de los créditos contra la masa. Como señala la Exposición de motivos de la Ley concursal (RCL 2003, 1748), la conclusión se basa en estos casos en que “el procedimiento alcanzó su finalidad (cumplimiento del convenio, íntegra satisfacción de todos los acreedores). [...] En el contexto descrito, este tribunal considera que no puede acordarse la conclusión de la quiebra, por no concurrir el presupuesto invocado, del artículo 176.1.3º de la Ley concursal, atendida la falta de pago de los créditos contra la masa. Ello, sin perjuicio, de que se proceda, a la mayor brevedad, a la cuantificación de los créditos contra la masa generados hasta la fecha y a la rendición de cuentas correspondiente”.

⁴ “La condición de crédito contingente o litigioso lo queda al albur de los cambios que pueda sufrir la resolución judicial dictada en primera instancia por las que se emitan en alzada, siendo lo decisivo mantener dicha consideración desde el momento en que se conteste la demanda, como así ha sido, hasta que recaiga sentencia definitiva firme, situación ésta que no consta haberse producido y esto, en definitiva, imposibilita el poner fin al concurso, no siendo aceptable por la Sala de Apelación la afirmación que como consecuencias de las vicisitudes procesales operadas en el curso del procedimiento ordinario anteriormente expresados se haya producido una situación de “solventia sobrevenida”, y si bien es cierto que a los efectos del artículo 88 de la Ley Concursal en la cuantificación del pasivo todos los créditos han de computarse en dinero, cuando se trata de créditos de naturaleza litigiosa, a virtud de la disposición del artículo 87.3 son reconocidos en el concurso como créditos contingentes sin cuantía propia y con la clasificación que corresponda, admitiéndose a sus titulares como acreedores legitimados en el juicio sin más limitaciones que la suspensión de los derechos de adhesión, voto y cobro, para que una vez llegada la confirmación de su crédito contingente o su reconocimiento en sentencia firme o susceptible de ejecución provisional, pasa a otorgar a su titular la totalidad de los derechos concursales que correspondan a su cuantía y calificación, lo que nos lleva a acordar la revocación de la sentencia dictada en la anterior instancia”.

⁵ As indicated in the on-line Insolvency Practical Memento – Francis Lefebvre.



definite insolvency report drafted by the insolvency administration. As indicated by the Client⁶, those definite recognized amounts are:

INSOLVENCY LIABILITIES Definite Insolvency Report (€)

Special privileged claims	9,052,251.69
General privileged claims	8,407.21
Ordinary claims	398,544.46
Contingent ordinary claim	152k approx. (homeowners' association)
Subordinated claims	10,142.10
TOTAL INSOL. LIAB.	9,469,345.46

ADMINISTRATIVE EXPENSES AGAINST ESTATE (€)

Insolvency administration June 12, 2012	94,057.00
Insolvency administration April-November 2017	59,500.00 ⁷
Homeowners' association Sun Park April 24, 2016	280k approx. (conting.)
Tomás Ramírez Hernández November 14, 2014	14,907.42
TOTAL ADM. EXPENSES AGAINST ESTATE	168,464.42

In particular, enough funds shall be consigned to cover the contingent claims and expenses recognized provisionally to the homeowners' association. However, in this case, LUCHY PLAYA should expressly state (when filing the writ that will be explained now) that those claims should only be paid if a definite firm judicial resolution finally confirms the association's right to those claims and the amounts.

Finally, enough amounts should also be consigned to cover imminent (not current) administrative expenses against the estate (if any), that could arise during the process to request the conclusion of the insolvency proceeding (or, at least, provide alternative guarantee that those eventual expenses will also be paid when they become due). All of it in order to mitigate any eventual opposition to the petition for conclusion of the insolvency proceeding.

⁶ We have not reviewed any documents related to the insolvency proceedings (other than the official publications in the Spanish Official Gazette and the Public Insolvency Registry). All the information has been provided by the Client; in particular, in its e-mail dated November 22, 2017.

⁷ As indicated by the Client, this amount is pending confirmation, as it supposedly corresponds to €8,500 per month since April 2017.



2.2. How can those claims be satisfied via consignment?

The consignment of funds, to pay all claims (as explained above), should be made in the bank account of the Administration of Justice with reference to the commercial court that processes the insolvency proceeding of LUCHY PLAYA (i.e. commercial court no. 1 of Las Palmas de Gran Canaria).

The instructions for the consignment of funds in the court's account by LUCHY PLAYA are the following⁸:

- (i) The bank account IBAN number is **ES55 0049 3569 9200 0500 1274**.
- (ii) In the **concept** of the transfer, LUCHY PLAYA (or a third party) must indicate (only and exclusively) 16 figures (with no separations between figures) that represent the specific court, type of proceeding and proceeding number. Those 16 figures are composed as follows:
 - a. First four digits represent the court. In this case (commercial court no. 1 of Las Palmas): **2304**.
 - b. Next four digits are always four zeros: **0000**.
 - c. Next two digits represent the type of proceeding. In this case (insolvency proceeding): **52**.
 - d. Next four digits represent the number of proceeding (preceded by zeros, if necessary). In this case (insolvency proceeding no. 36/2012): **0036**.
 - e. Next two digits represent the year of the proceeding. In this case (2012): **12**.

Thus, the concept of the transfer of funds shall indicate the following number (with no separations): **2304000052003612**.

3. PROCEDURAL STEPS UNDER THE SIA

Article 176.2 of the SIA establishes:

⁸ We have obtained this general information by means of an agent in court we have collaborated with in Las Palmas de Gran Canaria. We recommend though that LUCHY PLAYA verifies it with its own agent in court in the insolvency proceeding before consigning the amounts.



“2. In the last two cases of the preceding paragraph [i.e. article 176.1.4º], the conclusion shall be resolved by a judicial order and upon prior report issued by the insolvency administration, which shall be made available to all the parties in the proceeding for the term of fifteen days.

If opposition to the conclusion of the insolvency proceeding is raised within the term for hearing granted to the parties, an insolvency procedural plea shall be processed”.

Thus, after LUCHY PLAYA (or a third party) pays and/or transfers enough funds to the court's account (as explained above) for the satisfaction of all claims, LUCHY PLAYA shall file a writ before the commercial court no. 1 of Las Palmas stating that all claims have been satisfied and requesting the conclusion of the insolvency proceeding pursuant to article 176.2 of the SIA.

In essence, this writ should contain:

- (i) The details of the payments and/or consignations made (and provide evidence of it, such as a copy of the banking excerpts that prove the transfers of funds).
- (ii) A detailed list of all claims that have been satisfied.
- (iii) An express request for the court to make the consigned funds available for payment to all recognized creditors (with the considerations next indicated).
- (iv) Express instructions regarding payment of contingent claims (e.g. funds should remain consigned until the contingencies disappear).
- (v) Request for termination of the insolvency proceeding according to the process contained in article 176.2 of the SIA.

It is important that all creditors become aware of the payment/consignation of funds for satisfaction of their claims. Normally, as long as those creditors are procedural parties in the insolvency proceeding, they will be aware of the payment/consignation when they receive within the proceeding a copy of the writ filed by LUCHY PLAYA, but if any creditor is not a procedural party (i.e. has not appeared before the court within the proceeding), then specific and reliable communication shall be served to that creditor (e.g. *via* burofax, with proof of delivery and reception).



After LUCHY PLAYA files such petition writ within the insolvency proceeding, it is recommended that LUCHY PLAYA contacts the insolvency administration and, if necessary, the commercial court, to express its availability to furnish them with all necessary information (and evidence), so that they can verify the satisfaction of all claims and the existence of the cause for conclusion of the proceeding.

After that, the insolvency administration will submit a report analyzing if the alleged cause for conclusion of the insolvency proceeding occurs and thus the insolvency proceeding shall conclude.

The court will then order the conclusion of the insolvency proceeding and will make the insolvency administration's report available to the rest of the procedural parties for a term of 15 working days.

Within that term, any procedural party could file an opposition against the conclusion of the insolvency proceeding and, should it be the case, the court will process and resolve it in a separate insolvency procedural plea (where LUCHY PLAYA, the insolvency administration and the rest of interested parties will have the opportunity to discuss about the existence of the cause for conclusion). The judicial ruling resolving this eventual procedural plea could also be appealed before the competent Provincial Court.

Consequently, LUCHY PLAYA should note that the conclusion of the insolvency proceeding due to satisfaction of all claims (*ex* article 176.1.4º of the SIA) is not automatic, as it entails a process to be followed before the insolvency court, which requires judicial approval (upon prior report from the insolvency administration) and admits opposition from third parties in the proceeding. However, payment or consignment of all claims, including contingent claims and foreseeable administrative expenses, reduces the risk of opposition and facilitates a judicial resolution favorable to the conclusion.

Also, despite the SIA foresees a specific term of 15 working days for any procedural party to file an opposition to the conclusion request, the global and final duration of the process until the insolvency conclusion is declared by the court (including the resolution of an eventual opposition to the conclusion and, if appealed, the resolution from the Provincial Court) cannot be foreseen exactly and may vary upon specific circumstances of the proceeding and the court's workload at the time of resolving this. In any event, as anticipated, the full satisfaction of all claims, as well as a coordinated action with the insolvency administration and the court (e.g. by providing them with enough and detailed information and evidence about the effective satisfaction of all claims, transmitting them the importance of a quick and



smooth resolution of this petition, etc.), would help accelerate a favorable resolution of the petition.

4. OTHER RELEVANT CASE LAW IN THIS MATTER

Case law in this specific issue is not very wide, although we have found some cases (other than the resolutions we have already mentioned above), where the consignment of enough funds by the debtor (and other means to pay claims) to satisfy all claims lead to the effective conclusion of the insolvency proceeding.

- (i) **Ruling from commercial court no. 1 of Madrid, of October 30, 2006** [AC 2007\451]. Although in this case the satisfaction of claims and conclusion of the insolvency proceeding was carried out within the composition phase, it was finally executed through judicial consignment of funds and the ruling highlights the debtor's right to satisfy its creditors to become released from the liabilities and exit the insolvency situation:

“consta fehacientemente que Dorlast, SL –con el fin de desvincularse del procedimiento concursal– ha intentado su pago mediante convocatoria de todos los acreedores que fue interesada de este Juzgado y acordada mediante providencia de fecha 17 de marzo de 2006 y posteriormente –para quienes no comparecieron– a través de consignación notarial (doc. núm. 1 aportado con la solicitud de declaración judicial de cumplimiento del convenio). Al no haberse conseguido ni siquiera de este modo la realización efectiva del pago, por Dorlast, SL se ha procedido a consignar en la Cuenta de Depósitos y Consignaciones de este Juzgado aquellas cantidades que –en aplicación del contenido del convenio– corresponde satisfacer a dichos acreedores para que se les haga pago por un importe total de 76.937,62 euros.

*[...] Llegados a este punto, la única cuestión pendiente de abordar es si a pesar de que no hayan sido entregadas a todos los acreedores las cantidades que les corresponden en aplicación del contenido del convenio por actos sólo imputables a ellos, cabe declarar el cumplimiento del convenio. Para ello debemos partir de que la espera que establece el contenido del convenio aprobado es un límite máximo para el deudor. Es un plazo establecido únicamente en beneficio del deudor. Por tal razón, **el deudor tiene la facultad de satisfacer los créditos adeudados** –siguiendo el mismo orden de pago previsto en el convenio– **con anterioridad al vencimiento del plazo establecido. Si el acreedor al que se hace un ofrecimiento anticipado del pago íntegro del crédito que le corresponde en aplicación del contenido del convenio aprobado no lo acepta, debe permitirse la liberación del deudor respecto de tal deuda***



*mediante el expediente de la consignación judicial. En el presente caso consta que el deudor ha consignado exactamente las cantidades que, en aplicación del contenido del convenio aprobado corresponde entregar a cada uno de los acreedores rebeldes a la percepción de su crédito. De ahí que habiéndose procedido por la entidad concursada al ofrecimiento de pago a cada uno de los acreedores –extremo que no sólo ha sido verificado sino también realizado por este Juzgado– sin que éstos hayan comparecido a los efectos de percibir las cantidades que les corresponde, **debe permitirse al deudor liberarse de su deuda** de acuerdo con lo previsto en el artículo 1180 CC (LEG 1889, 27), estimando que se ha dado anticipadamente **cumplimiento al convenio** aprobado en el presente procedimiento mediante Sentencia de fecha 30 de enero de 2006 (AC 2006, 397)”.*

- (ii) **Ruling from commercial court no. 11 of Madrid, of April 23, 2013** [AC 2014\1593] (“Multi-Veste España” case). In this case, the debtor reached an out-of-court restructuring agreement with its financial creditors which allowed to make enough funds available for satisfaction of all claims, thus getting over the insolvency situation.
- (iii) **Ruling no. 9/2012 from the Provincial Court of Burgos (3rd section), of January 13** [JUR 2012\35239]. This ruling particularly remarks the possibility to satisfy creditors, to conclude the insolvency proceeding, at any stage during the proceeding:

“Tampoco el pago a los acreedores concursales parece específico de la fase de convenio, previendo el artículo 176.1.3º LC (RCL 2003, 1748) la conclusión del concurso cuando “en cualquier estado del procedimiento” se produzca o compruebe el pago o consignación de la totalidad de los créditos reconocidos o la íntegra satisfacción de los acreedores por cualquier otro medio. Ahora bien, que el pago a los acreedores concursales pueda hacerse en la fase común no obsta a la consideración de que durante la fase común la administración concursal solo debe atender el pago de los créditos contra la masa, que son los únicos que se pagan a su vencimiento. El pago a los acreedores concursales, es decir a los que lo eran con anterioridad al concurso, se hace normalmente fuera de la fase común, bien en la fase de cumplimiento del convenio o en la fase de liquidación”.

- (iv) **Ruling no. 46/2015 from commercial court no. 1 of Barcelona of February 10** [JUR 2015\186879]. This ruling resolved an opposition to the conclusion filed by a creditor; and the court stated that the claim held by such creditor was not due and payable at that moment (as the parties executed a refinancing agreement that included



a stay-on-payments for that claim), so the situation of insolvency had disappeared at that moment and the proceeding had to be concluded:

“De conformidad con el art. 176.1.4 º, 176.2 Y 181.3 de la Ley Concursal (RCL 2003, 1748), procederá la conclusión del concurso y el archivo de las actuaciones en cualquier estado del procedimiento, en el supuesto de que se compruebe el pago o la consignación de la totalidad de los créditos reconocidos, o la íntegra satisfacción de los acreedores por cualquier otro medio.

En el presente supuesto, cabe apreciar la concurrencia del supuesto de íntegra satisfacción de los acreedores, previsto en el artículo 176.1.4º LC , quienes no se han opuesto a la conclusión del mismo o a la rendición de cuentas, previo traslado del referido escrito presentado por la concursada.

*Respecto al acreedor HYPOTHENKENBANK FRANKFURT AG SA, el mismo resulta titular de un crédito por valor de 29.626.341,80 euros, sin embargo **éste no resulta exigible** hasta el 19 de diciembre de 2016, en virtud de un acuerdo privado de refinanciación elevado a público mediante escritura de 19/12/2013, por lo que, por expresa voluntad de las partes, **no existe actualmente insolvencia apreciable, habiendo sido satisfechos los intereses de los acreedores, bien sea por pago, bien sea por pacto privado, a salvo la contingencia que pueda ocurrir a partir del mes de diciembre de 2016 y que podría, o no, motivar la nueva situación de insolvencia de la concursada.***

Por ello, es procedente:

- 1) **Poner fin a este concurso y declararlo concluso por la satisfacción de todos los acreedores.***
- 2) Aprobar la rendición de cuentas presentada por la Administración Concursal”.*

- (v) **Ruling from commercial court no. 3 of Valencia of November 4, 2015** [JUR 2015\266495]. In this case, the court verified (from the documents provided by the debtor) that all creditors had been fully paid, including those administrative expenses against the insolvency estate:

*“En fechas 7.7.2015, se presentó escrito por la Procuradora de los Tribunales, Dª ..., en nombre y representación de Dª... y..., **solicitando la conclusión del concurso y el archivo de las actuaciones por encontrarse íntegramente satisfechos los acreedores (se acompañaba la documentación acreditativa pertinente).***

*[...] Pues bien, como se ha relacionado en la exposición fáctica de este Auto, **consta debidamente acreditado que todos los acreedores** de los concursados, Dª... y ...,*



han sido satisfechos y regularizados en sus respectivos créditos en el marco del actual procedimiento concursal.

*Igualmente consta acreditado que se habían **atendido la totalidad de los créditos contra la masa**, encontrándose los mismos al corriente.*

TERCERO

Por consiguiente, procede acceder a lo solicitado”.

- (vi) **Ruling from commercial court no. 6 of Madrid of September 30, 2013** [JUR 2014\110147]. This ruling stands out the importance of all claims being completely satisfied (or, at least, provisioned enough), including contingent claims:

*“Para resolver tal cuestión debe señalarse que es doctrina recogida en Auto del Juzgado de lo Mercantil nº 1 de Madrid, de 22.12.2006, que "... El artículo 176.1.3º LC (RCL 1988, 1642) se refiere al "pago o consignación de la totalidad de los créditos reconocidos o la íntegra satisfacción de los acreedores por cualquier otro medio". La diferenciación hecha por el precepto parece girar en torno al medio de cumplimiento de la obligación: en el primer caso, pago o consignación; en el segundo, cualquier otro medio. **En ambos casos, todos los acreedores del concursado deben haber visto satisfecho su crédito. A tal fin puede acarrear problemas el supuesto -como el presente- en que, por el momento en que se formula la solicitud de conclusión, todavía no se ha procedido a la confección de la lista definitiva de acreedores** por parte de la Administración concursal ...", añadiendo a los efectos que nos ocupan, que "... Debe ponerse asimismo de relieve que, por la propia esencia de la causa de conclusión que estamos examinando, **constituiría obstáculo para la terminación del concurso el que se encontrase pendiente contienda sobre la cuantía o calificación de algún crédito concursal...**".*

*Atendiendo a tal doctrina estima este Tribunal que procede **desestimar la solicitud de conclusión** formulada por la administración concursal **en cuanto la contingencia por decisión jurídica de crédito antes definitivo, determina que no pueda tenerse el mismo por inexistente** desde el punto de vista concursal; de tal modo que **su pendencia impide satisfacer los demás créditos concursales y contra la masa sin -al menos provisionar- los importes previsibles del crédito contingente.***

*En efecto, de la lectura concordada del art. **87.3 L.Co.**, art. 97.bis.1 L.Co. y art. 152.2 L.Co. resulta que la norma concursal ha sido especialmente celosa en señalar un momento preclusivo para que la contingencia reconocida en los listados definitivos de acreedores a favor de la A.E.A.T. no prolongue el concurso en perjuicio de los acreedores*



e impida su finalización, de tal modo que **si la contingencia no es desechada** [-por causa de una muy dilatada actividad inspectora o de comprobación-] **antes de la emisión del informe final de la liquidación** el crédito tributario **debe ser excluido del concurso**; sin perjuicio de su válido ejercicio y reclamación post-concursal una vez desaparecida aquella.

Aún más, la existencia de litigio o contienda por vía de recurso administrativo contra las liquidaciones emitidas por la A.E.A.T., recogidas en certificación de 25.4.2011 [-que sirvieron para la elaboración de los textos provisionales y definitivos-] y que determinó la nulidad por defecto de forma y retroacción de las actuaciones del procedimiento administrativo, permiten concluir que **la real naturaleza y calificación crediticia era la de crédito sometido a condición resolutoria** del art. 87.2 L.Co., por lo que la desaparición temporal por defecto de forma del acto de liquidación administrativa y su inmediata sustitución por nuevas liquidaciones tributarias [-una vez retrotraídas las actuaciones y subsanado el defecto procedimental-] no pueden influir en la calificación y tratamiento concursal de aquellos conceptos tributarios; máxime cuando la cuantía del crédito tributario debatido es superior a los 90.000.000.-€, supone el 99,5% del pasivo concursal y no puede apreciarse retraso o desidia en la actuación administrativa que perjudique a los acreedores concursales restantes [que son tres y por importe cercano a los 51.000.-€ en su conjunto-].

Por último debe indicarse que **tratándose de créditos sometidos a condición resolutoria** [-así lo eran los certificados el 25.4.2011 y lo son los certificados en 8.5.2013 en ejecución del fallo del T.E.A.C.-] **y abierta la fase de liquidación concursal, el art. 87.4 L.Co. atribuye al acreedor la facultad de solicitar del juez del concurso la adopción de medidas cautelares** para garantizar la igualdad de trato que los demás acreedores concursales, mediante la **constitución de provisiones en el activo que garanticen que se cumplan** [-mejor de no cumplirse-] la condición resolutoria **no se verá perjudicado su derecho**.

Resulta de ello que constante **la pendencia de la condición** derivada de recurso administrativo o contencioso-administrativo, **puede la A.E.A.T. oponerse a la íntegra realización en pago de la masa sin constituir una provisión adecuada [-en todo o en parte-] de su previsible crédito y de su probable importe; lo que legitima la oposición de la acreedora a la conclusión** mediante el futuro pago o consignación a los demás acreedores en su integridad”.

This report, excluding any inadvertent errors or omissions, is our opinion on this subject. It is strictly confidential and exclusively for the persons for whom it has been



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